

SENATE No. 985

The Commonwealth of Massachusetts

PRESENTED BY:

Ryan C. Fattman

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to 40B condominium units.

PETITION OF:

NAME:

Ryan C. Fattman

DISTRICT/ADDRESS:

Worcester and Hampden

SENATE No. 985

By Mr. Fattman, a petition (accompanied by bill, Senate, No. 985) of Ryan C. Fattman for legislation to develop an expense reimbursement program relative to 40B condominium units. Housing.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to 40B condominium units.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Section 7 of chapter 183A of the General Laws, as appearing in the 2022 Official Edition,
2 is hereby amended by inserting the following new paragraph:-

3 "Notwithstanding any general or special law to the contrary, all purchasers of a
4 condominium unit classified as an affordable unit pursuant to chapter 40B of the General Laws,
5 shall be responsible for paying in full any common expenses as stated in the master deed. The
6 Executive Office of Housing and Livable Communities shall develop a program to provide
7 common expense reimbursements to said purchasers of chapter 40B affordable units. No unit
8 owner in a condominium complex shall be imposed with subsidizing the common expenses of
9 any chapter 40B affordable unit."